NSW · SYDNEY · POCKET GUIDE

Can I build a granny flat?

The state rules for a secondary dwelling (granny flat) under the NSW Housing SEPP 2021. They apply across all of Sydney.

The 60-second check

- [ ] Zoned **residential** (R1, R2, R3 or R4)
- [ ] Block is **at least 450 m²**
- [ ] Block is **at least 12 m wide** at the building line
- [ ] Granny flat **60 m² or less**
- [ ] Bushfire rating is **not BAL-40 or Flame Zone**
- [ ] Not a **flood control lot**, heritage item or conservation area

All ticks? You can likely use the **fast route**: a private certifier approves it in about 2–3 weeks, with no neighbour notification.

Any cross? It's not a dead end. Lodge a **development application (DA)** with your council instead.

APPROVAL

Two ways to get approved

Fast route: Complying Development Certificate (CDC)

A **private certifier** approves it if **every** state standard is met. It usually takes about 10–20 business days, and neighbours aren't notified.

Council route: Development Application (DA)

For anything that doesn't fit the fast route. Your **council** assesses it against its local plans (LEP and DCP). It usually takes 40–90+ days, and neighbours are notified.

Some councils allow bigger granny flats or smaller blocks through a DA.

Rules for every granny flat

- [ ] **One** main house + **one** granny flat per block
- [ ] The block **can't be subdivided**, so you can't sell the flat separately
- [ ] The state rules require **no extra car parking**
- [ ] The block needs lawful access to a **public road**
- [ ] Not allowed on **R5 Large Lot Residential** land through the fast route

Block size, width and floor area

450 m²
minimum block size

60 m²
maximum granny flat floor area*

Minimum width at the building line

BLOCK SIZE	WIDTH
450 – 900 m²	**12 m**
900 – 1,500 m²	**15 m**
Over 1,500 m²	**18 m**

Battle-axe blocks: the access handle must be at least 3 m wide, with a 12 m × 12 m area clear of the handle.

Total floor area (house + granny flat + attached garage, decks etc.)

BLOCK SIZE	MAXIMUM TOTAL
450 – 600 m²	**330 m²**
600 – 900 m²	**380 m²**
Over 900 m²	**430 m²**

*Larger only if another planning instrument allows it. Blocks of 450–900 m² also have a 50% maximum site coverage.

FAST-ROUTE STANDARDS · 2 OF 2

Setbacks, height and outdoor space

BLOCK SIZE	SIDE	REAR
450 – 900 m²	**0.9 m**	**3 m**
900 – 1,500 m²	**1.5 m**	**5 m**
Over 1,500 m²	**2.5 m**	**Larger – check**

Rear setbacks increase for parts of the building above 3.8 m high.

- [ ] **Height:** 8.5 m maximum above existing ground level
- [ ] **Front:** behind the main house's building line
- [ ] **Corner blocks:** at least 3 m from a secondary road boundary
- [ ] **Next to a park or reserve:** at least 3 m from that boundary
- [ ] **Private open space:** at least 24 m², which can be shared with the main house
- [ ] **Energy:** BASIX certificate required

Single-storey tip

Most granny flats are single storey and under 3.8 m high, so on a typical 450–900 m² block you need 0.9 m on the sides and 3 m at the rear.

BEFORE YOU BUY OR BUILD

What rules out the fast route

- ✕ **Bushfire rating BAL-40 or Flame Zone.** On any bushfire-prone land, the flat must also meet Planning for Bush Fire Protection
- ✕ **Flood control lot**
- ✕ **Heritage item or heritage conservation area**
- ✕ **Block under 450 m²**, unless the flat is built *inside* the existing house
- ✕ **Sewer or easement** where you want to build. Needs Sydney Water approval

How to check any address

1. **NSW Planning Portal Spatial Viewer** (free): zoning, lot size, bushfire, flood and heritage maps
2. **Section 10.7 planning certificate** from the council. It's already in the contract when you buy
3. **Survey or site plan:** width at the building line and the boundaries
4. **Sydney Water "Tap in"**: where the sewer runs
5. **Bushfire (BAL) assessment** if the land is bushfire-prone
6. **Free site check** from a granny flat builder or certifier

SOURCES & LIMITS

Where these rules come from

Checked October 2026 against the NSW Government's planning pages and the consolidated text of **State Environmental Planning Policy (Housing) 2021**: s.54 and Schedule 1 (secondary dwellings), and s.57 (bushfire).

Good to know

Rules change. Your **certifier** or **council** gives the final answer for a specific block.

Councils add their own rules on the DA route. For example, Lake Macquarie's plan asks for 16 m² of private open space.

- NSW Planning – Secondary dwellings: planning.nsw.gov.au/policy-and-legislation/housing/housing-sepp/secondary-dwellings
- Housing SEPP 2021 (official): legislation.nsw.gov.au – epi-2021-0714
- Housing SEPP 2021 Schedule 1 (consolidated): austlii.edu.au/au/legis/nsw/consol_reg/sepp2021448/sch1.html
- Housing SEPP 2021 s.57 bushfire: austlii.edu.au/au/legis/nsw/consol_reg/sepp2021448/s57.html
- NSW Planning Portal Spatial Viewer: planningportal.nsw.gov.au/spatialviewer
- Sydney Water Tap in: sydneywater.com.au/tapin

Not legal advice. Prepared for Robin Jajju, 101 Studios.